

13	Carrillo vs. Regents of The University of California 2024-01378003	Motion for Summary Judgment and/or Adjudication Defendant The Regents of the University of California’ Motion for Summary Judgment or, in the Alternative, Motion for Summary Adjudication of Issues is CONTINUED to 10/20/2025 at 01:45 PM in Department C15. If the opposing party does not make the requisite showing for a continuance pursuant to <i>Code of Civil Procedure</i> section 437c(h), the court may still grant a continuance in its discretion where good cause is shown. <i>Lerma v. County of Orange</i> (2004) 120 Cal.App.4th 709, 716; <i>Johnson v. Alameda County Med. Ctr.</i> (2012) 205 Cal.App.4th 521, 533. Instead of filing an opposition, Plaintiff’s counsel filed a request for a continuance. The reason for the request is that there has been a breakdown in the attorney-client relationship due to Plaintiff’s counsel’s inability to communicate with Plaintiff and, as a result, counsel filed a Motion to be Relieved as Counsel on 2/18/25, which is scheduled to be heard on 8/11/25. Plaintiff’s counsel therefore requests the Court continue the hearing date on Defendant’s Motion for Summary Judgment to 11/21/25, or a date thereafter, so that Plaintiff may be afforded time to retain new counsel and enable new counsel to come up to speed with the facts of this case and meaningfully oppose Defendant’s Motion for Summary Judgment. In response, Defendant filed an objection to the request arguing Plaintiff’s counsel has shown no activity or intent to have the Motion to Be Relieved heard on an earlier date by filing an <i>ex parte</i> application to advance the hearing on the Motion to be Relieved to an earlier date and has improperly waited until just before Plaintiff’s Opposition papers are due to instant motion to file this requested continuance. Defendant also argues the notice is improper because it was filed without giving adequate notice to the defense. Defendant also complains Plaintiff’s counsel did not provide appropriate facts to support the requested continuance. The timeline of relevant events is as follows: --08/22/24 Plaintiff deposed and represented by counsel --01/28/25 MSJ filed --02/18/25 Motion to be Relieved filed --04/01/25 Continuance request filed
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		--04/21/25 MSJ hearing --08/11/25 Scheduled Motion to be Relieved hearing --09/29/25 Jury Trial --11/21/25 Requested continued MSJ hearing date While it is concerning Plaintiff's counsel has not done anything to bring this issue to the court's attention prior to filing the instant request, it is not a reason to deny the request. For instance, had Plaintiff sought a continuance under <i>Code of Civil Procedure</i> section 473c(h) to conduct additional discovery, the request could have been made on or before the date the opposition was due. The instant request was when the opposition was due. Also, it is also unclear if counsel's inability to communicate with Plaintiff possibly interfered with counsel's ability to oppose the motion. Additional information is needed. Therefore, the hearing on Defendant's motion is continued to 10/20/2025 at 01:45 PM in Department C15. On the Court's own motion, the Jury Trial set for 09/29/2025 is continued to 03/16/2026 at 09:00 AM in Department C15. The parties are to take note of Orange County Local Rule 317 and the policies and procedures in effect for Department C15. All dates to work off the new trial date. Defendant to give notice.
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